SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 13, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M. Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling, in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video.** Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: https://santaclara.courts.ca.gov/online-services/remote-hearings. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court. (**Local Rule 5**).** If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to https://reservations.scscourt.org or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:
https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	2007-1-CV-079117	Debt Recover, Inc. vs. R. Guevara	**Order to Show Cause: Sale of Dwelling** Scroll down to Line 1 for Tentative Ruling.
LINE 2	19CV358368	KYC Investment Group, a California corporation vs Kwok Can et al	**Motion: Attorney's Fees and Cost** Scroll down to Line 2 for Tentative Ruling.
LINE 3	20CV373487	Kenneth Jocewicz et al vs FCA US, LLC et al	**Motion: Attorney's Fees and Cost** Scroll down to Line 3 for Tentative Ruling.
LINE 4	23CV426393	Von Raesfeld Family Partnership LP et al vs Bennet Stafford et al	**Judgment on the Pleadings** Scroll down to Line 4 for Tentative Ruling.
LINE 5	24CV453673	James Stanford vs Ford Motor Company et al	**Motion for Summary Judgment/Adjudication** Scroll down to Line 5 for Tentative Ruling.
LINE 6	25CV468204	Liangbei Wang vs Apple Inc.	**Demurrer** Scroll down to Line 6 for Tentative Ruling.
LINE 7	25CV473100	AB Landscaping, Inc. vs Andrew J. Fry as co-trustee of the Andrew Fry and Jin Z. Fry Family Trust et al	**Motion to Strike** Scroll down to Line 7 for Tentative Ruling.
LINE 8	25CV476168	P. Hong vs Justine Papa et al	**Demurrer** Scroll down to Line 8 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
LINE 1	25CV467969	Krysta Mercurio et al vs Jayden Tran et al	**Hearing on Minor's Compromise** Parties to appear.

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9:00 A.M.

Calendar Line # 1
Case Name Debt Recover, Inc. vs. R. Guevara
Case No. 2007-1-CV- 079117

Order to Show Cause: Application for Sale of Dwelling

I. BACKGROUND

A. BRIEF FACTUAL HISTORY

Before the Court is Collect Access LLC's ("Collect Access" and "Judgment Creditor Assignee") Motion to grant an Application for Order for Sale of Dwelling, real property located in Santa Clara County, California (APN 684-10-117) against Roxana E. Guevera ("Judgment Debtor"). The judgment is based on a consumer debt that was not secured by the debtor's principal place of residence at the time it was incurred. This is a second application for the same request by the Judgment Creditor Assignee providing further information. On March 24, 2025, the Honorable Shella Deen denied the order without prejudice for evidence on how moving party became the assignee of this judgment and the different names of Judgement Debtor and judgment and title property.

On April 11, 2007, a judgment was entered against Roxana E. Guevera[1] ("Judgment Debtor"); the judgment was assigned to Collect Access on November 17, 2014; and the judgment was renewed on December 30, 2022 in the amount of $36,734.73. An abstract of judgment on behalf the Judgment Creditor Assignee was recorded in Santa Clara County on January 12, 2009 as document number 20093512, and on November 29, 2018 as document number 24071670. To date $12,268.64 has been recovered against the Judgment Debtor. Exhibit A in Judgment Creditor Assignee application provides a three-page acknowledgement of assignment of judgment that is filed endorsed on November 17, 2024. Debt Recover, Inc. thereby transfers, permanently assigns, and sets over the debt with Roxana E. Guevara, and individual listed in Case No. 107CV079117 as the debtor. The total sum of debt is listed as $18,610.84 with a judgment date of April 11, 2007.

The Judgment Debtor acquired the Levied Property on or about June 1, 2000. On October 25, 2024, the Santa Clara County Sheriff's Office levied upon the Levied Property and caused a Notice of Levy to be recorded with the County of Santa Clara Recorder's Office. "Title to the Levied Property is held by Maria N. Guevara, A Married Woman and Roxanna Guevara, A Single Woman." (Collect Access's Application, p. 5). This was emailed to counsel for Judgment Creditor Assignee on October 29, 2024.

Judgment Creditor Assignee asserts that the records for the county tax assessor do not reflect the filing of a Declaration of Homestead for the Levied Property by either record titleholder as set forth by the county recorder to the Levied Property: Roxanna Guevera (the Judgment Debtor) or Maria N. Guevera (spouse of the Judgment Debtor). Judgment Creditor Assignee claims that it has no information that would indicate that the dwelling is homestead and the amount of the homestead exemption, if any. The records for the county tax assessor reflect a homeowner's exemption for the Levied Property. The records for the county tax assessor do not reflect the filing of a disabled veteran's exemption for the Levied Property. The instant judgment is based on a consumer debt and the consumer debt was not secured by the debtor's principal place of residence at the time it was incurred.

[1] The judgment was entered against Roxana E. Guevara, an individual, while the title to the Levied Property is listed under the name of Roxanna Guevara. This variation in spelling has been previously addressed and resolved through an Affidavit of Identity, which was filed with the Court on April 12, 2024. The affidavit affirms that Roxana E. Guevara and Roxanna Guevara are in fact the same person. (Collect Access Application, p.4 and Exhibit D).

On June 12, 2025, the Judgment Creditor Assignee refiled an application for an order for the sale of dwelling, accompanied by a proof of service via mail service[2] on that same day. On June 20, 2025, Declaration of Service by posting the Application and papers were attached to the tenant address of 4544 Bolero Drive, San Jose, California, 95111 on June 16, 2025 at 8:16 p.m. Collect Access attached a copy of a notice of hearing on right to homestead exemption. The original motion was heard on March 4, 2025. At the previous hearing, the court denied the motion without prejudice, expressly stating that the motion may be refiled with evidence of how Collect Access became the assignee and explanation of the different in names of the Judgment Debor's name as it appears on the title. The Judgement Creditor Assignee refiled this motion and exhibits addressing the Court's earlier ruling. (Collect Access Application, totaling 6 pages and Declaration of Tappan Zee, totaling 55 pages with attached Exhibits A- E).

B. RELEVANT PROCEDURAL HISTORY

This matter was initially set for hearing on February 17, 2026. No opposition papers were filed with the court. Per California Code of Civil Procedure section 1005(b) opposition papers were due on February 2, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. However, given the gravity of the request for an order to sell the levied property, the Court provided another opportunity for the Judgment Debtor to respond. The Court set this Order to Show Cause as to why an order for sale on the Levied Property should not proceed and ordered the Judgment Debtor to appear.

The motion continues to be unopposed. Per California Code of Civil Procedure section 1005(b) opposition papers were due on July 31, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the nonresponding party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Judge Creditor Assignee filed the motion for an order for sale of the dwelling on June 12, 2025 and October 29, 2024. Both motions were accompanied by proofs of service via mail service on the defendant Roxana E. Guvera, Maria N. Guevara, and Roxanna Guevara on June 12, 2025 and October 29, 2024.

The Court has carefully reviewed the following moving papers; on June 12, 2025 notice and application for the order (totaling 6 pages); June 12, 2025 Declaration of Tappan Zee in support of the application and attached Exhibits A-D (totaling 55) pages; October 29, 2024 notice and application for the order (totaling 5 pages); October 29, 2024 Declaration of Tappan Zee in support of the application and attached Exhibits A-B (totaling 47 pages); proof of service; and the pleadings.

II. <u>LEGAL STANDARD</u>

California Code of Civil Procedure § 704.750 requires that an Application for Order for Sale of Dwelling be filed with the Court when a lien sale has been initiated by the judgment creditor to enforce a money judgment against a judgment debtor. Pursuant to California Code of Civil Procedure § 704.750(a):

"(a) Promptly after a dwelling is levied upon (other than a dwelling described in subdivision (b) of Section 704.740), the levying officer shall serve notice on the judgment creditor that the levy has been made and that the property will be released unless the judgment creditor complies with the requirements of this section. Service shall be made personally or by mail. Within 20 days after service of the notice, the judgment creditor shall apply to the court for an order for sale of the dwelling and shall file a copy of the application with the levying officer. If the judgment creditor does not file the copy of the application for an order for sale of the dwelling within the allowed time, the levying officer shall release the dwelling."

[2] Proof of service was sent to Roxana E. Guevara, and Individual and Maria N. Guevara and Roxanna Guevara at 4544 Bolero Drive, San Jose, California 95111.

Under California Code of Civil Procedure § 704.770(a), the motion must be heard withing 45 days after the application is filed, unless there is good cause for a later hearing.

"Upon the filing of the application by the judgment creditor, the court shall set a time and place for hearing and order the judgment debtor to show cause why an order for sale should not be made in accordance with the application. The time set for hearing shall be not later than 45 days after the application is filed or such later time as the court orders upon a showing of good cause."

Collect Access asserts that it has satisfied the requirements under Code of Civil Procedure sections 704.750(a) and 704.770(a) as the Notice of Levy as reordered on October 25, 2024, and e-mailed to counsel for the Judgement Creditor Assignee on October 29, 2024. In regard to timing, Collect Access asserts that this motion's date was the earliest available date set for the court and thus asserts good cause for a hearing date after the 45-day window.

III. ANALYSIS

Here, the Court finds that the Judgement Creditor Assignee has satisfied the requirements under Code of Civil Procedure sections 704.750(a) and 704.770(a), provided updated information on how Collect Access became the judgment assignee, and provided evidence of the difference of names the Judgement Debtor.

No opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Rule of Court, Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, the unopposed motion, the judgment creditor assignee has met its burden. However, the Court will hear oral arguments from the parties. The Court will prepare the formal Order.

Calendar Line # 2
Case Name KYC Investment Group, a California Corporation vs Kwok Chan et al
Case No. 19CV358368

Motion for Attorney's Fees and Cost

I. BACKGROUND

This case stems from a November 8, 2019, Complaint involving eight causes of actions, including fraud. (Complaint). Plaintiff KYC Investment Group ("KYC") alleges that Defendant Kwok Chan recorded a deed of trust on a property as the CEO of KYC and fraudulently filed false statement of information with the Secretary of State. Plaintiff filed a First Amended Complaint on April 23, 2024. On April 25, 2024, parties filed a notice of settlement. Parties field a stipulation extending time to bring the matter to trial on November 15, 2024, on the grounds that the conidium had not sold and the settlement had not been finalized and extended the time under Code of Civil Procedure section 583.310 to May 8, 2025.

On June 23, 2025, the Honorable Shella Deen granted an order shortening time to hear Plaintiff's motion to enforce settlement pursuant to Code of Civil Procedure section 664.6 and attorney's fees and costs. On September 9, 2025, Judge Deen granted the motion to enforce the settlement. The motion for fees and costs was denied without prejudice, noting that "specific information as to the nature and extent of time spent is required, rather than a one sentence estimation." (Order filed October 15, 2025).

On December 23, 2025, Plaintiff filed this motion for attorney's fees and cost. The motion accompanied by a proof of service indicating electronic mail service on defendant's counsel on that same day.

The Court has carefully reviewed the moving papers, including: Plaintiff's notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 3 pages); Declaration of Dek Ketchum and attached Exhibits 1-3 (totaling 39 pages); Opposition to the motion (totaling 8 pages); Reply brief (totaling 8 pages); Declaration if Ketchum in support of the Reply brief (totaling 2 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

Code of Civil Procedure section 664.6 provides in relevant part:

> "(a) If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.
> (b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:
> (1) The party.
> (2) An attorney who represents the party.
> (3) If an insurer is defending and indemnifying a party to the action, an agent who is authorized in writing by the insurer to sign on the party's behalf. This paragraph does not apply if the party whom the insurer is defending would be liable under the terms of the settlement for any amount above the policy limits."

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37). To enforce a written settlement agreement under Code of Civil Procedure section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 797-98).

III. ANALYSIS

On September 9, 2025, Judge Deen granted the motion to enforce the settlement, the written order was entered on October 15, 2025. (Exhibit 1; Declaration of Ketchum). At that same hearing, the court had denied without prejudice the request for attorney's fees and cost for lack of itemization and proof. Plaintiffs' present motion seeks attorneys' fees and costs. (Motion, p. 2).

A. ATTORNEYS' FEES

Here, the Court consider section11 of the Settlement Agreement and Mutual General Release ("Settlement Agreement"), which states as follows**:**

> 11. Attorneys' Fees and Costs
> If any legal action or other proceeding is brought as a result of any controversy arising from or with respect to the provisions of this Agreement, the prevailing party shall be entitled to recover reasonable attorneys fees and other costs incurred in the action or proceeding, in addition to any other relief to which the prevailing party may be entitled. (p. 4 of the Settlement Agreement).

Plaintiffs' counsel seeks attorney's fees that is comprised as follows: (1) $12,777.00[3] in attorney's fees for 26.9 hours of work at an hourly rate of $475.00 for attorney Ketchum and includes 2.7 hours for preparing this motion. (Declaration of Ketchum ⁋ 4; Exhibit 2); and (2) $805.00 in attorney's fees for 2.3 hours of work in preparing a reply brief at the hourly rate of $350.00 for attorney Ketchum. (Reply brief, at p. 2); (3) any additional time associated with the upcoming court appearance on this matter. (*Id.*); and (4) additionally, plaintiffs' counsel seek $1,500.00[4] for 3.3 hours of work at the hourly rate of $480.00 for attorney Kurt Seibert that Plaintiff's counsel hired to handle an ex parte hearing on this matter in June 2025. (*Id.,* at ⁋ 4; Exhibit 3).

Defendants oppose the motion on four main grounds: (1) the plaintiffs have not met its burden of proof. (Opposition, p. 2). Defense argues that billing records do not automatically establish reasonable or necessary billing. Defendants argue it has acted in good faith in attempting to sell the property and that it has informed plaintiffs' counsel of updates; (2) the settlement agreement does not authorize all the requested fees and only reasonable fees are recoverable. (*Id.,* at p. 3). Defendant challenges many entries over several months for the following: client communications, settlement negotiations, trust revisions, internal conferences, post-order drafting; and preparing this fee motion. (*Id.*); (3) the fees are excessive including (a) 5.1 hours for drafting motions; (b) 2.2 hours to revise ex parte application; (c) 1.9 hours for further edits; (d) 1.8 hours to "finalize"; (e) "numerous telephone conferences"; (f) "multiple emails"; and (g) "numerous trust revisions." (*Id.,* at p. 4). Defense challenges these entries as excessive conferencing, clerical work, repetitive editing, inefficiency, in sufficiency of proof, and inadequacy by having to file a fee motion twice for failing to provide sufficient proof in the first motion which was the basis for the court's denial without prejudice. (*Id.* at 4-5); and (4) the $1,500.00 in attorney's fees for Kurt Seibert on the grounds that the fees were unreasonable and unnecessary. (*Id.,* at p. 5-6).

In its reply brief, plaintiffs' counsel does not contest that the defendants have not been diligent in attempting to sell the property at issue and claims that the delays in the sale is not the basis for the motion for attorney's fees, thus the contention that the plaintiff has not met its burden on that ground is irrelevant. (Reply brief, p. 3). Plaintiff argues that the defendant concedes that plaintiffs are entitled to reasonable attorney's fees and a blanket objection that generalized categories such as client communications, settlement negotiations, and such fails to assert a factual basis to challenge the time entries. (*Id.*). Plaintiff argues that the hours sought are not excessive in light of its attempts to resolve the matter and work through the defendants refusal to sign the trust agreement. (*Id.,* at p. 5). As to attorney Seibert's fees, plaintiffs' counsel asserts that it had no choice to seek an ex parte application for an order shortening time was necessary as the motion was set for a time beyond the five-year statute under Code of Civil Procedure section 583.310. Plaintiffs' counsel emphasizes that he requested an extension, but did not receive a response, and thus had no alternative but to see the motion, that Judge Deen granted. Plaintiffs' counsel asserts that Mr. Seibert's proximity to the courthouse was also reasonable and reduced fees as it reduced at least two hours of commute time and fees. (*Id.,* at p. 5-6).

Upon review, the court will GRANT attorneys' fees, but DENIES the full amount requested by the plaintiffs' counsel. The Court exercises its discretion to reduce 12.6 hours for duplicate work, specifically on the ex parte application when another counsel was hired to handle the same application, excessive, and unreasonable for activity from June 2, 2025 to November 10, 2025. The Court will award the requested hourly rate for attorney Ketchum at $475.00. The Court GRANTS one (1) hour of work for this motion at the requested hourly rate of $475.00 and

[3] Plaintiffs' counsel seeks $12,777.00 for 26.9 hours of work at an hourly rate of $475.00 which comes to $12,777.50, but the Court will consider the requested amount by the plaintiffs' counsel as the reduced figure is used throughout, including the total sum for all requested attorneys' fees in this matter.

[4] Plaintiffs' counsel seeks $1,500.00 for 3.3 hours of work at an hourly rate of $480.00 for the work of Kurt Seibert which comes to $1,584.00, but the Court will consider the requested amount by the plaintiffs' counsel as the reduced figure is used throughout, including the total sum for all requested attorneys' fees in this matter.

awards an hour (1) of work in preparing the reply brief at the hurly rate of $375.00 as set forth in the Declaration of Ketchum. The Court GRANTS the request for $1,500.00 in attorney's fees for Kurt Seibert.

The Court DENIES the request for further fees that was expended on appearances for the hearing as prospective.

Thus, the Court GRANTS $8,810.00 in total attorneys' fees in this matter.

B. COSTS

Plaintiffs' counsel seeks to recover $120.00 for filing the prior motion to enforce the settlement agreement and this present motion for fees and cost. The defense objects to costs associated with this present motion as the plaintiffs' counsel's failure to set forth an adequate basis for fees and cost in the prior motion, and thus incurring unnecessary costs.

The Court notes that the motion for fees and costs could have been addressed with the prior motion as Judge Deen denied the request for attorney's fees and cost without prejudice for lack of itemization and proof.

However, the Court exercises its discretion and will GRANT the request for costs in the amount of $120.00 for the filing costs of the motion to enforce the settlement and this present motion for fees and cost.

C. SANCTIONS

It is uncontested that the Honorable Deen previously denied the motion for sanctions on October 15, 2025.

However, plaintiffs' counsel avers that sanctions are appropriate in this matter based on Mr. Chan's refusal to sign the trust after the settlement agreement was executed and plaintiffs worked in good faith to accommodate his concerns. (*Id.,* at p. 3-4). Plaintiffs' counsel avers that due to the defendant's refusal to comply with the settlement agreement, plaintiffs had to extend time and costs to seek a motion to enforce and recover fees and cost.

Defendants oppose any sanctions as unwarranted. Defendant emphasizes that did not make any finding that the defendant acted in bad faith. (Opposition, p. 3). Thus, defendant asserts that the plaintiffs' counsel characterization of unjustified conduct by the defendant is not a court finding as a basis for sanctions. (*Id.*).

The Court, finds that the request for sanctions has previously been addressed and denied. Further, there is no showing of new facts to establish grounds for sanctions. Thus, the motion for sanctions is DENIED.

IV. CONCLUSION

Based on the foregoing, the Court GRANTS total attorneys' fees in the amount of $8,810.00

The Court GRANTS costs in the amount of $120.00.

The request for sanctions is DENIED.

The Court will prepare the formal Order.

Calendar Line # 3
Case Name Kenneth Jocewicz et al vs FCA US, LLC et al
Case No. 20CV373487

Motion Attorney's Fees and Cost

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a Complaint under the Song-Beverely Act that was filed on November 13, 2020 regarding Plaintiffs Kenneth and Linda Jocewicz's (collectively "Jocewicz") 2011 Chrysler Jeep Dodge, vehicle identification number 2C3CA5CG9BH531183 ("Subject Vehicle"). (Complaint). The parties fined a notice of settlement on May 16, 2023, as Plaintiffs Jocewicz accepted the defense offer to compromise for $60,000.00 under Code of Civil Procedure section 998 on May 15, 2023. (Exhibit 3, Baker Declaration).

On July 31, 2024, the Honorable Shella Deen authorized the joint stipulation to ***dismiss the matter with prejudice*** and retain jurisdiction under Code of Civil Procedure section 664.6. This Order was filed on August 6, 2024.

B. RELEVANT PROCEDURAL BACKGROUND

Before the court is Plaintiff Jocewicz's motion for attorney's fees, costs and enhancer that was filed on December 10, 2025. The motion was accompanied by a proof of service indicating electronic mail service to defense counsel on that same day. Plaintiff seeks an Order awarding her attorney's fees in the amount of $49,565.50; costs in the amount of $4,815.02; a 1.35 multiplier in the amount of $17,347.93; and additional anticipated fees in the amount of $4,000.00 on the grounds it is the prevailing party.

Defendant FCA US, LLC ("FCA") filed an opposition papers on July 31, 2026.

The Court has carefully reviewed the following: Plaintiff's notice of motion and memorandum of points and authorities (totaling 12 pages), Declaration of Angel M. Baker and attached Exhibits 1-3 (totaling 19 pages); Declaration of Payam Shahian and attached Exhibit 1 (totaling 35 pages); Plaintiff's exhibit list (totaling 2 pages); Plaintiff's request for judicial notice totaling 6 pages); Defendant's opposition (total 21 pages); Declaration of Colin P. Cronin in support of defendant's opposition and attached Exhibits 1-7 (totaling 61 pages); Reply brief (totaling 12 pages); defendant's objection to evidence in the Declaration of Shahian (totaling 17 pages); defendant's objection to evidence in the Declaration of Baker (totaling 6 pages); plaintiff's reply brief for attorney's fees (totaling 10 pages); plaintiff's reply to defenses objections to the Declarations of Shahian and Baker (totaling 3 pages); plaintiff's objection to evidence in the Declaration of Cronin (totaling 9 pages); Declaration of Baker in support of the plaintiff's reply brief and attached Exhibits 1-2 (totaling 28 pages); proofs of services; and the pleadings.

II. PROCEDURAL ISSUES

A. TIMELINESS OF THE MOTION

California Rule of Court, Rule 3.1702(b)(1) provides: "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court-including attorney's fees on an appeal before the rendition of judgment in the trial court-must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case[.]" Further, "Unless a statute or rules 8.108, 8.702, or 8.712 provides otherwise, a notice of appeal must be filed on or before the earliest of: (A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment." (Cal. Rule Court, rule 8.104(a)(1)).

A voluntary dismissal is "effectively a 'judgment'" within the meaning of the rule prescribing the time to appeal. (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 427 [111 Cal.Rptr.2d 837] (*Sanabria*); accord, *Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.* (2022) 73 Cal.App.5th 764, 781 [288 Cal.Rptr.3d 773] (*Catlin*).) Thus, "the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock)." (*Catlin*, at p. 781). In *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 648, the main issue in dispute was regarding what even triggered the clock. Plaintiff Hatlevig argued it was the entry on June 17, 2024, of the signed minute order that dismissed the operative complaint without prejudice. That order, he says, triggered the right to appeal and the corresponding time to move for attorney fees. Hatlevig further averred that the notice the clerk mailed to the parties stating the case would be deemed dismissed on August 15, 2023, was not appealable and thus did not start the clock on the time to file a notice of appeal or to move for attorney fees. General Motors countered that an appealable order or judgment is not required to start the clock running on the time to serve and file a motion for attorney fees and time "was triggered by the conclusion of the litigation on the merits on August 15, 2023, when, pursuant to the trial court's notice of dismissal, the case was deemed dismissed without prejudice." The *Hatlevig* Court found that General Motors had the better argument.

Defendant FCA opposes the motion and seeks an order denying the plaintiffs' motion on the grounds that it is *time barred as the motion for fees and costs was filed 492 days after the case was dismissed and filed on August 6, 2024.* (Opposition, p. 5).

Plaintiff asserts that *Hatleving* does not render the motion untimely and conflicts. (Reply, p. 1). Plaintiff argues that a notice of dismissal was requested, but never entered. (*Id.,* at p. 2). Plaintiff argues that Rule 3.1702 deadline does not run following a 998 settlement that produces a non-appealable dismissal. (*Id.,* at p. 4). Even if the motion was untimely, plaintiff seeks a finding of good cause on reasonable grounds and good faith for the motion to be considered on the merits. (*Waters v. Superior Court of Los Angeles County* (1962) 58 Cal.2d 885, 893; *Malouf Bros. v. Dixon* (1991) 230 Cal.App.3d 280; *Wackeen v. Malis* (2002) 97 Cal.App.4th 429).

B. DISMISSAL WITH PREJUDICE

The Court notes that the stipulated motion filed on August 6, 2024 was to ***dismiss the case was with prejudice***, albeit retaining jurisdiction under Code of Civil Procedure 664.6.

California law is clear that "[a] dismissal with prejudice is considered a judgment on the merits preventing subsequent litigation between the parties on the dismissed claim." (*Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 91; *Citizens for Open Access etc. Tide, Inc. v. Seadrift Assn.* (1998) 60 Cal.App.4th 1053, 1065 ["""A judgment entered . . . by consent or stipulation, is as conclusive a . . . bar as a judgment rendered after trial."""]). When an action is dismissed "with prejudice" following a settlement—a step known in the parlance of res judicata as "retraxit" (*Torrey Pines Bank v. Superior Court* (1989) 216 Cal.App.3d 813, 820)—"'[t]he statutory term "with prejudice" clearly means the plaintiff's right of action is terminated and may not be revived. . . . [A] dismissal with prejudice . . . bars any future action on the same subject matter.'" (*Boeken v. Philip Morris USA,* 48 Cal.4th 788, 793). One exception is when a court is dealing with a collateral issue, such as sanctions, (*In re Marriage of Blake & Langer* (2022) 85 Cal.App.5th 300, 309): Whether a court has jurisdiction to hear a motion after a dismissal or judgment depends on whether the motion concerns a "collateral proceeding" as opposed to one directly based on the merits. (*Day v. Collingwood* (2006) 144 Cal.App.4th 1116, 1125).

Here, the Court notes that while the case was dismissed with prejudice, the intent was to retain jurisdiction under Code of Civil Procedure section 664.6 and expressly stated in the stipulation and Order, " . . .enforce settlement including Plaintiffs' attorneys' fees, costs, and expenses and funding of such." (Stipulation and Order of Dismissal on August 6, 2024). Further the Offer to Compromise also included a section that if parties were unable to resolve attorney's fees and costs, the plaintiff may seek reasonable costs and expenses. (Offer to Compromise, ⁋ 3; Exhibit 3 to Declaration of Angel).

III. LEGAL ANALYSIS

A. ATTORNEY'S FEES

Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (*See also,* Civ. Code § 1717(a)). "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (*Bowman v. City of Berkeley* (2005) 131 Cal.App.4th 173, 178). The Song-Beverly Act provides, "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794(d)).

Thus, the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559). "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Ibid.*). In determining a reasonable attorney fee, the trial court considers the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36). The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) The lodestar amount "may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (*Bernardiv. County of Monterey* (2008) 167 Cal.App.4th 1379, 1399, citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). The purpose of any lodestar and the increase thereto "is intended to approximate market-level compensation for such services" and is entirely discretionary. (*Id*.). "The purpose of a fee enhancement is not to reward attorneys for litigating certain kinds of cases, but to fix a reasonable fee in a particular action." (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1171-72).

"Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (*Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 247 [cleaned up]). "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437, citations omitted).

"'In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.' " (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, citing *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn*. (2008) 163 Cal.App.4th 550, 564). The court will exercise its discretion in determining if the Plaintiff's attorney's fees request is reasonable by considering the following factors: the nature of litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623).

Here, Plaintiff seeks 106 hours of attorney's fees in the amount of $49,565.50 for seven clerks and attorneys at Strategic Legal Practice: (1) Rebecca Neubauer; (2) Muky Dai; (3) Nino Sanaia; (4) Scott Friedman; (5) Tyson Smith; (6) Rabiya Timizi; and (7) Jefferey Yin with hourly rates ranging from $295.00 to $635.00. (Declaration of Baker ⁋⁋7-9, 16, and 19; Motion at p. 10). Plaintiffs' counsel assert that a total of 21 attorneys and clerks staffed the case, but are limiting fees to the above staff. (*Id.*). Attorney Baker does not seek reimbursement for time spent on this matter. (Declaration of Baker ⁋ 7). Plaintiff avers that FCA initially denied all liability, requiring plaintiffs' counsel to file a complaint, propound written discovery, file a motion to compel further responses to request for production of documents, set one[5]; defend the deposition of the plaintiff, prepare and file trial documents, attend a mandatory settlement conference, and evaluate defense's offer to compromise. (Motion, at p. 4). Plaintiff counsel emphasizes that its work resulted in a successful settlement of the case for $60,000.00. (*Id.*).

Additionally, Plaintiffs' counsel seeks additional anticipated fees in the amount of $4,000.00 for filing a reply brief and appearing for the hearing. (Declaration of Shahian ⁋ 27).

Defendant FCA opposes fees on two main grounds: (1) time-barred and (2) excessive, unsupported, cumulative, unnecessary on a standard lemon law case. First, FCA asserts that the plaintiffs motion is ***extremely untimely and thus time barred as the motion for fees and costs was filed 492 days after the case was dismissed and filed on August 6, 2024.*** (Opposition, p. 5). Even if the plaintiffs' motion was timely filed, FCA argues that the attorney's fees sough is excessive and grossly inflated due to "extreme overstaffing, over-billing, and 'block billing,' resulting in a <u>grossly</u> inflated demand for attorney's fees and costs of $75,728.45." (*Id.*). Defense emphasizes that the hourly rate of unlicensed law clerks at $295.00 is unreasonable. (*Id.*). Defendants argue that the demand for $49,565,50 is inflated, offensive, and the additional request for $4,000.00 is fees is "purely speculative fees not incurred." (*Id.*).

The Court finds the motion was untimely. The stipulation to file dismiss the case with prejudice was executed by Plaintiffs and Defendant on July 29, 2024, authorized by the Honorable Shella Deen on July 31, 2024, and filed on August 6, 2024. Even if this Court takes the latest date when the case was dismissed on August 6, 2024, the motion was filed 492 days later. There is no good cause for such a delay under Rule of Court, rule 3.1702(b)(1) and rules 8.104 and 8.108.

B. MULTIPLIER

The lodestar amount "may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (*Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1399 [citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132]). The purpose of any lodestar and the increase thereto "is intended to approximate market-level compensation for such services" and is entirely discretionary. (*Id.*). "The purpose of a fee enhancement is not to reward attorneys for

[5] The Court notes that on Plaintiff filed a motion to compel further responses to request for production of documents, set one on November 4, 2021, but withdrew its motion on February 2, 2022. The motion substantively the same was refiled on June 16, 2022, which the Honorable Socrates Manoukian denied.

litigating certain kinds of cases, but to fix a reasonable fee in a particular action." (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1171-72).

"The trial court is neither foreclosed from, nor required to, award a multiplier." (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 citing *Montgomery v. Bio-Med Specialties, Inc.* (1986) 183 Cal.App.3d 1292, 1297.)

Plaintiffs' counsel seeks a 1.35 multiplier enhancement, which amount to $17,347.93 and argues that "[p]laintiffs' counsel obtained an excellent outcome" and that there were substantial risks of non-recovery or delayed recover in a contingency case. (Declaration of Shahian ¶¶ 21 and 28; Motion at p. 11).

The plaintiff has not met its burden of showing that a multiplier is merited under *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138. In applying a multiplier for contingent risk, "the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment . . . " (*Id.*).

Defendants argue that a multiplier is unwarranted in this matter as no novel legal strategy was required, rather the case is formulaic of standard lemon law cases. (Opposition, p. 18). FCA states that a negative multipliers should apply given the untimeliness of the motion. (*Id.*).

There is no evidence that this case involved anything novel, difficult, or required exceptional skill. The case appears to be a standard lemon law action. Plaintiffs' counsel's law firm Strategic Legal Practices also handles a large volume of Song-Beverly cases on a contingency basis so the risk in this specific case is not high or unusual. Additionally, the motion is untimely. The request for a multiplier is DENIED.

C. COSTS

The prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.6 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (California Rule of Court, rule 3.1700(a); see also *Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 927–928). The Song-Beverly Act allows a prevailing party to recover all expenses, including those not traditionally allowed. (See *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112.)

Plaintiffs' counsel seeks costs in the amount of $4,815.02 and asserts that FCA has agreed to pay the plaintiffs' litigation costs. (Motion, at p. 12). The costs compromise of filing and motions fees, jury fees, deposition costs, process service fees, electronic filing service fees, and court appearance professionals and courtesy copies. The memorandum of costs included exhibits with breakdown for costs along with invoices.

Defendant FCA opposes any costs being awarded on the grounds that the motion is untimely, vague, and unsupported. (Opposition, at p. 17). FCA asserts that the plaintiffs failed to submit a memorandum of costs, receipts, invoices, documentation, and failed to make any attempts to categorize costs to establish reasonably necessary costs.   (*Id.,* at p. 17-18). In the alternative, FCA seeks a reduction of costs to $1,852.25. (*Id.;* Exhibit 3 to Declaration of Cronin).

Here, the Court notes that no memorandum of costs or motion to strike or tax costs were timely filed in accordance to Code of Civil Procedure section 1010.6 and Rule of Court, rule 3.1700. The Court DENIES the request for costs as untimely.

III. CONCLUSION
Based on the foregoing, the Plaintiffs' motion for attorney's fees, enhancer and cost is DENIED. The Court will prepare the formal Order.

Calendar Line # 4
Case Name Von Raesfeld Family Partnership LP et al vs Bennet Stafford et al
Case No. 23CV426393

Judgment on the Pleadings
Before the court is a motion for judgment on the pleadings as to the first cause of action for breach of contract and third cause of action for declaratory relief by defendant Brandt Maxwell. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND
Plaintiff Von Raesfeld Family Partnership LP ("Plaintiff") is the owner and landlord of the subject property located at 660 Lafayette Street in Santa Clara , California ("Subject Property"). (Complaint, ¶¶1 and 8). Plaintiff employs Intempus Realty, LLC ("Intempus") to manage the Subject Property. (Complaint, ¶¶2 and 8).

On or about June 7, 2023, Plaintiff, by Intempus, and defendants Bennet Stafford ("Stafford") and Brandt Maxwell ("Maxwell") (collectively, Stafford and Maxwell are hereafter referred to as "Defendants") entered into a lease agreement ("Lease") for the Subject Property for a fixed term to commence on July 6, 2023 and terminate on July 5, 2024. (Complaint, ¶9 and Exh. A). Defendants were to pay monthly rent in the amount of $16,200.00 and had a security deposit in the amount of $12,000.00. (*Id.*).

The Lease included an addendum entitled "Relet Addendum." (Complaint, ¶10). The Relet Addendum obligated Defendants to pay a "Reletting Charge" if Defendants "(1) fail to move in or (2) move out before the Ending Date, or (3) are judicially evicted." (Complaint, ¶11). The Relet Addendum also specifically stated, "The reletting charge is not a cancellation or buyout fee and does not release you from your obligations under the Lease, including your obligation to pay Rent." (Complaint, ¶¶11 – 12). Defendants signed the Relet Addendum. (Complaint, ¶13).

Prior to executing the Lease, Plaintiff and Defendants had already established a landlord-tenant relationship as Defendants were tenants at the Subject Property commencing July 6, 2022 and terminating on July 5, 2023. (Complaint, ¶14). In or around October 2022, Intempus discussed a renewal of the then-existing lease. (*Id.*). Defendants agreed to renew with a new lease for 2023 – 2024. (*Id.*).
After signing the Lease on June 6, 2023, defendant Stafford emailed his intention to breach the Lease indicating [Defendants] "will be terminating our July 2023-24 lease," claiming the inability to find other students to live at the Subject Property at the rent price. (Complaint, ¶18). On June 13, 2023, defendant Maxwell emailed Intempus and confirmed Defendants were "finalizing a list of people for the 660 Lafayette lease for July 2023-2024 and we will have it to you by tomorrow evening." (Complaint, ¶19). Defendants confirmed to Intempus that they are going to honor the terms of the Lease. (*Id.*). Plaintiff reasonably relied on Defendants' representation. (*Id.*).

On June 15, 2023, Intempus emailed Defendants for an update and defendant Maxell, responding on behalf of Defendants, stated, "We were unable to find replacement tenants. We will not be moving in." (Complaint, ¶20). Defendants did not and have not paid rent. (Complaint, ¶22). Plaintiff, by Intempus, served three (3) Three-Day Notices to Pay Rent or Quit on or about July 11, 2023; August 10, 2023; and September 8, 2023, but Defendants have not paid rent. (*Id.*).

Plaintiff has been unable to relet the Subject Property since Defendants breached the Lease. (Complaint, ¶23).

On November 16, 2023, Plaintiff and Intempus filed a complaint against Defendants asserting causes of action for:

(1) Breach of Contract
(2) Fraud
(3) Declaratory Relief

On January 18, 2024, defendant Stafford filed an answer to the plaintiffs' complaint.

On November 12, 2024, plaintiff Intempus dismissed its claims in the complaint.

On February 28, 2025, defendant Maxwell filed an answer to Plaintiff's complaint.

On April 10, 2026, defendant Maxwell filed the motion now before the court, a motion for judgment on the pleadings as to the first and third causes of action of Plaintiff's complaint.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 438(f), a defendant's motion for judgment on the pleadings may be made after the time to demur has expired and an answer has been filed. Under a Code of Civil Procedure section 438(c), a motion by a defendant may be made on the grounds that (1) the court "lacks jurisdiction of the subject of one or more of the causes of action alleged" or (2) the complaint or cross-complaint "does not state facts sufficient to constitute a cause of action against that defendant." A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by statute, the rules governing demurrers apply. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999). "A motion for judgment on the pleadings is akin to a general demurrer; it tests the sufficiency of the complaint to state a cause of action. The court must assume the truth of all factual allegations in the complaint, along with matters subject to judicial notice." (*Wise v. Pacific Gas and Elec. Co. (*2005) 132 Cal.App.4th 725, 738, citations omitted). A motion for judgment on the pleadings "does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the [motion] will be overruled." (*Fire Ins. Exchange v. Superior Court* (2004) 116 Cal.App.4th 446, 452).

Code of Civil Procedure section 438(e) sets forth a timeline for statutory motion for judgment on the pleadings, which must be made within 30 days of the date the action was initially set for trial, unless otherwise provided by the Court. However, this only applies to the statutory basis for the motion. (Code Civ. Proc., § 438). Caselaw after the creation of that statute still recognizes grounds for a common law motion for judgment on the pleadings. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 [recognizing that the motion may be made "at any time either prior to the trial or at the trial itself"]; *see also, Smiley v. Citibank (South Dakota) N.A*. (1995) 11 Cal.4th 138, 145, fn. 2 [non-statutory MJOP upheld despite fact section 438 enacted during course of proceedings]; *Cordova v. 21st Century Ins. Co.* (2005) 129 Cal.App.4th 89, 109 [MSJ treated as a common law motion for judgment on the pleadings]; *Tarin v. Lind* (2020) 47 Cal.App.5th 395 [addressing merits of non-statutory motion]).

III. ANALYSIS

A. BREACH OF CONTRACT

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; see also CACI, No. 303).

In moving for judgment on the pleadings as to Plaintiff's first cause of action, defendant Maxwell acknowledges the allegation at paragraph 9 which states, "On or about June 7, 2023, [Plaintiff] . . . and Defendants entered into a lease agreement for the Property for a fixed term." Defendant Maxwell contends this allegation is contradicted by subsequent allegations. Namely, at paragraphs 17 – 18 of the complaint, it is alleged that Defendants signed the Lease on or about June 6, 2023 and that Plaintiff's agent, Intempus, signed on June 7, 2023. However, prior to Plaintiff's acceptance of the Lease on June 7, 2023, "on or about June 6, 2023, after signing the Lease, Defendant Stafford emailed his intention to breach the Lease and that [Defendants] 'will be terminating our July 2023-2024 lease' claiming the inability to find other students to live at the Property at the rent price."

Defendant Maxwell also points to paragraph of the Lease itself, attached as an exhibit to the complaint, which states, in relevant part, "Acceptance of this lease by Tenants shall not be binding upon Landlord, unless and until it is subsequently Signed by Landlord (or Manager on behalf of Landlord) . . . and is personally received by Chase Raisin (Tenants representative), who is authorized to receive it. Prior to the completion of all of these events, Landlord shall have no duties or obligations for leasing of the property."

Defendant Maxwell contends these other allegations of the complaint amount to a revocation or rescission of their assent to the Lease before the Lease became a binding contract.

"Contract formation requires mutual consent, which cannot exist unless the parties 'agree upon the same thing in the same sense.' [Citations]. 'If there is no evidence establishing a manifestation of assent to the "same thing" by both parties, then there is no mutual consent to contract and no contract formation.' [Citation]." (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 208). "The existence of mutual consent is determined by objective rather than subjective criteria, the test being what the outward manifestations of consent would lead a reasonable person to believe." (*Weddington Productions, Inc. v. Flick* (1997) 60 Cal.App.4th 793, 811). "The parties' outward manifestations must show that the parties all agreed 'upon the same thing in the same sense.'" (*Ibid.*).

Defendant Maxwell's argument disregards the subsequent allegations found at paragraph 19 where Plaintiff alleges, "On June 13, 2023 . . . Defendants confirmed to [Plaintiff's agent, Intempus,] that they are going to honor the terms of the Lease." So although there are, as defendant Maxwell points out, allegations to suggest Defendants withdrew their consent, there are additional allegations of Defendants' outward manifestation of consent subsequent to Plaintiff's alleged acceptance on June 7, 2023.

The existence of mutual consent is a question of fact. (*DeLeon v. Verizon Wireless, LLC* (2012) 207 Cal.App.4th 800, 813; see also *Alexander v. Codemasters Group Limited* (2002) 104 Cal.App.4th 129, 141—"Mutual assent is a question of fact").

Defendant Maxwell argues further that the terms of the Lease require personal receipt of the Lease by Chase Raisin before it becomes binding and, according to defendant Maxwell, Plaintiff has not alleged his performance of this condition precedent.

"A condition precedent is one which is to be performed before some right dependent thereon accrues, or some act dependent thereon is performed." (Civ. Code, §1436). "A plaintiff, however, cannot enforce the defendant's obligation unless the plaintiff has performed the conditions precedent imposed upon him." (*Daum v. Superior Court* (1964) 228 Cal.App.2d 283, 287 citing Civ. Code, §1439).

However, Code of Civil Procedure section 457 states, "In pleading the performance of conditions precedent in a contract, it is not necessary to state the facts showing such performance, but it may be stated generally that the party duly performed all the conditions on his part, and if such allegation be controverted, the party pleading must establish, on the trial, the facts showing such performance." Plaintiff has made such a general allegation of performance at paragraph 29 of the complaint: "[Plaintiff] has performed all the terms, conditions, and covenants of the Lease that are to be performed by [Plaintiff]."

Consequently, defendant Maxwell's motion for judgment on the pleadings as to the first cause of action of Plaintiff's complaint on the ground that the complaint does not state facts sufficient to constitute a cause of action against that defendant [Code Civ. Proc., §438, subd. (c)(1)(B)(ii)] for breach of contract is DENIED.

B. DECLARATORY RELIEF

Defendant Maxwell moves for judgment on the pleadings as to the third cause of action of Plaintiff's complaint for declaratory relief asserting that it "fails for the same reasons as the first Cause of Action," i.e., "the complaint fails to establish that there is the existence of an enforceable contract that Defendants could have breached."[6]

For the same reasons discussed above, defendant Maxwell's motion for judgment on the pleadings as to the third cause of action of Plaintiff's complaint on the ground that the complaint does not state facts sufficient to constitute a cause of action against that defendant [Code Civ. Proc., §438, subd. (c)(1)(B)(ii)] for declaratory relief is DENIED.

IV. <u>CONCLUSION</u>

Based on the foregoing, the defendant's motion for judgment on the pleadings as to the first and third causes of action are DENIED. The Court will propose the formal Order.

Calendar Line # 5
Case Name James Stanford vs Ford Motor Company et al
Case No. 24CV453673

Motion for Summary Judgment/Adjudication

Before the court is Ford Motor Company's motion for summary judgment/ adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. <u>BACKGROUND</u>

In this action, plaintiff James Stanford ("Plaintiff") alleges, among other things, defendant Ford Motor Company ("Ford") and others violated the Song-Beverly Consumer Warranty Act ("Act") with regard to a 2019 Ford F150 vehicle ("Vehicle"). In particular, Plaintiff alleges the Vehicle suffered a Transmission Defect. (Complaint, ¶¶26 – 37).

On December 10, 2024, Plaintiff filed a complaint against defendant Ford and others asserting causes of action for:

(1) Violation of subdivision (d) of Civil Code section 1793.2
(2) Violation of subdivision (b) of Civil Code section 1793.2
(3) Violation of subdivision (a)(3) of Civil Code section 1793.2
(4) Breach of the Implied Warranty of Merchantability
(5) Fraudulent Inducement – Concealment
(6) Negligent Repair

[6] See page 6, lines 2 – 3 and 6 – 8, of the memorandum of points and authorities in support of defendant Maxwell's motion for judgment on the pleadings.

On January 15, 2025, defendant Ford filed an answer to Plaintiff's complaint.

On May 20, 2026, defendant Ford filed the motion now before the court, a motion for summary judgment/ adjudication of Plaintiff's complaint.

On May 21, 2026, the court issued an order advancing the hearing date of defendant Ford's motion for summary judgment/ adjudication from September 24, 2026 to August 13, 2026.

On March 20, 2026, defendant Ford filed and served (electronically and personally) Plaintiff with amended notice of its motion for summary judgment/ adjudication.

Based on a hearing date of August 13, 2026, Plaintiff's opposition was due July 24, 2026. (See Code Civ. Proc., §437c, subd. (b)(2)—"An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing."). Plaintiff has not filed any timely opposition.

II. <u>LEGAL STANDARD</u>

Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment or summary adjudication "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c)).

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850). "There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar, supra,* 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court "must consider all of the evidence and all of the inferences drawn therefrom" and view the evidence and inferences in the light most favorable to the opposing party. (*Id.* at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (*Reid v. Google, Inc*. (2010) 50 Cal.4th 512, 540).

Similarly, "[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation]. 'A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment.' [Citation]." (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

III. <u>ANALYSIS</u>

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., §437c, subd. (a)(1)).

"A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., §437c, subd. (p)(2)).

"The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., §437c, subd. (c)).

A. FIRST CAUSE OF ACTION

As to the first three causes of action of Plaintiff's complaint, defendant Ford acknowledges:

> A plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element). (Civ. Code, § 1793.2; *Ibrahim v. Ford Motor Co.* (1989) 214 Cal. App. 3d 878, 886-887 [263 Cal. Rptr. 64]).

(*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101).

Specifically with regard to the third element, defendant Ford cites *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 (*Silvio*) where the court explained:

> The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle "after a reasonable number of attempts." "Attempts" is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.

Here, defendant Ford proffers evidence that there was only one warranty repair on the Vehicle.[7] Pursuant to *Silvio*, one attempt does not trigger defendant Ford's obligation to make restitution or replace the Vehicle under the Act. Having filed no opposition, Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

B. SECOND CAUSE OF ACTION

Civil Code section 1793.2, subdivision (b), states, in relevant part, "the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days." Here, defendant Ford proffers evidence that the subject Vehicle was in service for no more than 15 days, not in violation of the Act.[8] Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

C. THIRD CAUSE OF ACTION

Civil Code section 1793.2, subdivision (a)(3), states, "Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall . . . Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period."

Defendant Ford proffers evidence that the repair records do not indicate Ford failed to make service literature and replacement parts available to authorized service and repair facilities.[9] Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

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[7] See Ford Motor Company's Separate Statement of Undisputed Material Facts in Support of Motion for Summary Adjudication ("Ford UMF"), Issue No. 1, Fact Nos. 1 – 13.

[8] See Ford UMF, Issue No. 1, Fact Nos. 1 – 13.

[9] See Ford UMF, Issue No. 1, Fact Nos. 1 – 13.

D. FOURTH CAUSE OF ACTION

> Under the implied merchantability warranty, "every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer's and the retail seller's implied warranty that the goods are merchantable." (§ 1792). The warranty "'arises by operation of law'" and therefore applies despite its omission from a purchase contract. (*Mega RV Corp. v. HWH Corp.* (2014) 225 Cal.App.4th 1318, 1330 [170 Cal. Rptr. 3d 861]; see *American Suzuki Motor Corp. v. Superior Court* (1995) 37 Cal.App.4th 1291, 1295 [44 Cal. Rptr. 2d 526] (*American Suzuki*)). Merchantability, as pertinent here, means that the goods "[p]ass without objection in the trade under the contract description," and are "fit for the ordinary purposes for which such goods are used." (§ 1791.1, subd. (a)).

(*Brand v. Hyundai Motor America* (2014) 226 Cal.App.4th 1538, 1545 (*Brand*)).

> a "'"core test of merchantability is fitness for the ordinary purpose for which such goods are used."'" (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1303 [95 Cal. Rptr. 3d 285] (*Mexia*)). "Such fitness is shown if the product 'is "in safe condition and substantially free of defects" … .' [Citation.]" (*Ibid.*; see *American Suzuki*, *supra*, 37 Cal.App.4th at p. 1296 [implied warranty does not promise to fulfill buyer's expectations, but provides instead for minimum level of quality]). Thus, a new car need not "be perfect in every detail"; rather, its implied merchantability "requires only that a vehicle be reasonably suited for ordinary use." (*Keegan v. American Honda Motor Co., Inc.* (C.D.Cal. 2012) 838 F.Supp.2d 929, 945).

(*Brand*, *supra*, 226 Cal.App.4th at p. 1546).

Here, defendant Ford proffers evidence that the Vehicle was presented once for transmission slippage or harsh jerking and contends this does not render the Vehicle unfit for its ordinary purpose, as a matter of law.[10] Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

E. FIFTH CAUSE OF ACTION

Plaintiff's sixth cause of action alleges fraudulent concealment of the Transmission Defect. Defendant Ford proffers evidence that Plaintiff has only provided factually devoid discovery responses to support this claim.[11]

"[A] moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision [(p)(1)]. Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact." (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [mere restatement of the allegations contained in the first amended complaint is so devoid of facts that an absence of evidence can be inferred]; see also *Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 104 [Defendant propounded a series of special interrogatories which called for all facts regarding plaintiffs' exposure to asbestos from defendant's products. Plaintiffs' answers "contain[ed] little more than general allegations against [defendant] and does not state specific facts showing that [plaintiff] was actually exposed to asbestos-containing material from [defendant's] products."] See also *Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102-1103—"a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff's factually devoid discovery responses from which an absence of evidence may be reasonably inferred.").

The court agrees with defendant Ford that, based upon Plaintiff's devoid discovery responses, the burden has shifted to Plaintiff to set forth specific facts which prove the existence of a triable issue of material fact.

[10] See Ford UMF, Issue No. 2, Fact Nos. 1 - 8.

[11] See Ford UMF, Issue No. 3, Fact Nos. 1 – 4 and 14 – 21.

Defendant Ford has met its initial burden of showing that the causes of action asserted in Plaintiff's complaint have no merit. Having filed no opposition, Plaintiff has failed to show that a triable issue of one or more material facts exists. Accordingly, defendant Ford's motion for summary judgment is GRANTED.

IV.<u>CONCLUSION</u>
Based on the foregoing, the motion for summary judgment is GRANTED. The Court will prepare the formal Order.

Calendar Line # 6
Case Name Liangbei Wang vs Apple Inc.
Case No. 25CV468204

Demurrer
Before the court is defendant Apple Inc.'s demurrer to plaintiff's first amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. <u>BACKGROUND</u>
Plaintiff Liangbei Wang ("Plaintiff") alleges that in 2017 – 2018, Plaintiff created and actively used Apple ID and iCloud email accounts. (First Amended Complaint ("FAC"), at unnumbered page 3). In early 2024, Plaintiff discovered he could log in but email boxes were inaccessible. (*Id.*) Between 2024 and 2025, Plaintiff repeatedly contacted defendant Apple Inc. ("Apple") support, provided identity verification, and requested restoration of access and data export. (*Id.*). Defendant Apple refused or failed to provide relief. (*Id.*).

Plaintiff alleges defendant Apple knowingly and wrongfully restricted access to Plaintiff's iCloud email accounts. (*Id.*). Plaintiff further alleges defendant Apple erased or withheld historical iCloud drive contents, causing loss of critical data including cryptocurrency private keys and transaction records. (*Id.*).

On June 16, 2025, Plaintiff, a self-represented litigant[12], filed a complaint against defendant Apple.

On September 18, 2025, defendant Apple filed a demurrer to Plaintiff's complaint.

An October 16, 2025 minute order reflects the court (Hon. Deen) sustained defendant Apple's demurrer with leave to amend.

On November 12, 2025, Plaintiff filed the now operative FAC. In it, Plaintiff identifies and asserts the following causes of action:

(1) Breach of Written Contract
(2) Breach of Implied Covenant of Good Faith
(3) Violation of Stored Communications Act (18 U.S.C. §2701)
(4) Conversion/ Trespass to Chattels
(5) Unfair Competition (Bus. & Prof. Code §17200)

[12] Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. "[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]" (*Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303). "A litigant has a right to act as his own attorney [citation] 'but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.'" (*Lombardi v. Citizens Nat'l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209).

On December 22, 2025, defendant Apple filed the motion now before the court, a demurrer to Plaintiff's FAC.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A. BREACH OF WRITTEN CONTRACT

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; see also CACI, No. 303).

If the contract is written, "the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference." (*Otworth v. Southern Pacific Transportation Co.* (1985) 166 Cal.App.3d 452, 459).

In his first cause of action, Plaintiff alleges, "Apple breached its iCloud Terms of Service by failing to provide continued access and failing to provide prior notice of suspension." However, as defendant Apple argues, Plaintiff has alleged a breach of the iCloud Terms of Service, but has not set forth what those terms are.

In opposition, Plaintiff counters by stating, "This argument elevates form over substance." Without citation to any legal authority, Plaintiff contends he is "not required to reproduce Apple's lengthy, unilateral service agreements verbatim. Alleging the contract's effect and breach is sufficient."

"In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language." (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 199). "This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions, and it involves the danger of variance where the instrument proved differs from that alleged; it is not frequently employed. Nevertheless, it is an established method." (4 Witkin, California Procedure (4th ed. 1997) Pleading, §480, p. 573).

Even if the court found Plaintiff had adequately pleaded the legal effect of the iCloud Terms of Service, defendant Apple argues additionally that Plaintiff has not alleged his own performance. Plaintiff's performance is indeed an element of a breach of contract claim. "The plaintiff cannot enforce the defendant's obligation unless the plaintiff has performed the conditions precedent imposed on him. [Citation]. Accordingly, the allegation of performance is an essential part of his cause of action. [Citation.]" (4 Witkin, California Procedure (4th ed. 1997) Pleading, §491, pp. 581 – 582).

Plaintiff does not address his failure to plead performance in opposition.

Accordingly, defendant Apple's demurrer to the first cause of action of Plaintiff's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for breach of written contract is SUSTAINED with 10 days' leave to amend.

B. BREACH OF IMPLIED COVENANT OF GOOD FAITH

"Every contract imposes upon each party a duty of good faith and fair dealing in its performance and its enforcement." (Rest.2d Contracts, § 205). "There is an implied covenant of good faith and fair dealing in every contract that neither party will do anything which will injure the right of the other to receive the benefits of the agreement." (*Comunale v. Traders & General Ins. Co.* (1958) 50 Cal.2d 654, 658; see also CACI No. 325).

"The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party's right to receive the benefits of the agreement actually made. [Citation.] The covenant thus cannot 'be endowed with an existence independent of its contractual underpinnings.' [Citations.] It cannot impose substantive duties or limits on the contracting parties beyond those incorporated in the specific terms of their agreement." (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 349 – 350 (*Guz*)).

"The implied covenant of good faith and fair dealing rests upon the existence of some specific contractual obligation. [Citation.] 'The covenant of good faith is read into contracts in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract's purpose.' [Citation.] . . . 'In essence, the covenant is implied as a supplement to the express contractual covenants, to prevent a contracting party from engaging in conduct which (while not technically transgressing the express covenants) frustrates the other party's rights to the benefits of the contract.'" (*Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1031 – 1032).

In the second cause of action, Plaintiff alleges, "Apple abused its discretionary power by maintaining a lockout for over [12] months, frustrating the core benefit of the contract."

Defendant Apple demurs to this second cause of action by arguing that a breach of implied covenant of good faith does not exist independently and supplements an existing contract, but since Plaintiff has not sufficiently stated a cause of action for breach of contract, then the second cause of action cannot exist by itself. Plaintiff offers no argument in opposition.

Accordingly, defendant Apple's demurrer to the second cause of action of Plaintiff's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for breach of implied covenant of good faith is SUSTAINED with 10 days' leave to amend.

C. VIOLATION OF STORE COMMUNICATIONS ACT, 18 U.S.C. §2701

Except as provided in subsection (c) of this section whoever—

> (1) intentionally accesses without authorization a facility through which an electronic communication service is provided; or
> (2) intentionally exceeds an authorization to access that facility;
>
> and thereby obtains, alters, or prevents authorized access to a wire or electronic communication while it is in electronic storage in such system shall be punished as provided in subsection (b) of this section.

(18 U.S.C. §2701, sub. (a)).

In the third cause of action, Plaintiff alleges, “Apple knowingly and intentionally prevented Plaintiff, an authorized user, from accessing stored electronic communications.”

“[Where] recovery is based on a statutory cause of action, the plaintiff must set forth facts in his [or her] complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate. [Citations.]” (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5).

Defendant Apple argues, among other things, that to state a claim for a violation of the Stored Communications Act (“SCA”), a plaintiff must allege that defendant Apple either “intentionally accesses without authorization a facility through which an electronic communication service is provided; or intentionally exceeds an authorization to access that facility,” but Plaintiff here has done neither. Plaintiff has only alleged the subsequent portion of the statute, i.e., that defendant Apple “prevents authorized access to a wire or electronic communication while it is in electronic storage in such system.”

Plaintiff does not confront this argument in opposition.

Plaintiff also sidesteps defendant Apple’s primary argument which is that it comes within one of the stated exceptions found at 18 U.S.C. section 2701, subsection (c), namely, “Subsection (a) of this section does not apply with respect to conduct authorized by the person or entity providing a wire or electronic communications service.” Plaintiff alleges defendant Apple has prevented his access to an electronic communication service provided by defendant Apple, to wit, iCloud and or Apple ID.

Accordingly, defendant Apple’s demurrer to the third cause of action of Plaintiff’s complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for violation of the SCA is SUSTAINED with 10 days’ leave to amend.

D. CONVERSION/ TRESPASS TO CHATTELS

> “Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages. Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant's good faith, lack of knowledge, and motive are ordinarily immaterial. [Citations.]” (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066, [80 Cal.Rptr.2d 704]). The basis of a conversion action “ ‘rests upon the unwarranted interference by defendant with the dominion over the property of the plaintiff from which injury to the latter results. Therefore, neither good nor bad faith, neither care nor negligence, neither knowledge nor ignorance, are the gist of the action.’ [Citations.]” (*Ibid.*).

(*Los Angeles Federal Credit Union v. Madatyan* (2012) 209 Cal.App.4th 1383, 1387; see also CACI, No. 2100).

> Under California law, trespass to chattels "lies where an intentional interference with the possession of personal property has proximately caused injury." *Intel Corp. v. Hamidi* (2003) 30 Cal. 4th 1342, 1350-51, 1 Cal. Rptr. 3d 32, 71 P.3d 296 (2003). To state a trespass to chattels claim, a plaintiff must plead that "(1) the defendant intentionally and without authorization interfered with plaintiff's possessory interest in the computer system; and (2) defendant's unauthorized use[] proximately caused damage." *In re Facebook Internet Tracking Litig.*, 263 F. Supp. 3d 836, 842 (N.D. Cal. 2017) (quoting *eBay, Inc. v. Bidder's Edge, Inc.*, 100 F. Supp. 2d 1058, 1069-70 (N.D. Cal. 2000)).

(*Brodsky v. Apple Inc.* (N.D.Cal. 2020) 445 F. Supp. 3d 110, 122-123 (*Brodsky*)).

Defendant Apple demurs by arguing that there are no allegations in the FAC that it "affirmatively targeted and obtained [Plaintiff's] emails nor that Apple affirmatively worked to deprive [Plaintiff] of access to his account." However, as noted above, intent, good faith, lack of knowledge, and motive are immaterial. Defendant Apple then goes on to argue (as the court understands) that there are no allegations that its conduct was wrongful. Defendant Apple draws from the *Brodsky* decision to argue that a trespass for chattels claim does not survive in a situation where the plaintiff has voluntarily installed software as then the alleged conduct is not done "without authorization," and a software update is not an "intentional interference."

The court does not find the facts in *Brodsky* to be comparable to those alleged here. Plaintiff here has alleged his email was made "inaccessible," that defendant Apple repeatedly refused or failed to restore Plaintiff's access to his email despite verification of his identity, and continue to lock him out of his email content and cloud files. The court finds such allegations to be distinguishable from the allegations in *Brodsky* that defendant Apple, there, interfered with plaintiffs' access to their Apple devices by "requiring an extraneous login process through two-factor authentication that is imposed on Plaintiffs and Class members without authorization or consent."

Accordingly, defendant Apple's demurrer to the fourth cause of action of Plaintiff's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for conversion/ trespass to chattels is OVERRULED.

E. UNFAIR COMPETITION (BUS. & PROF. CODE, §17200)

"The UCL prohibits 'any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising,' and any act prohibited by the false advertising law. (Bus. & Prof. Code, § 17200). "Section 17200 'borrows' violations from other laws by making them independently actionable as unfair competitive practices. In addition, under section 17200, a practice may be deemed unfair even if not specifically proscribed by some other law." (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1143, internal quotations and citations omitted).

Plaintiff's fifth cause of action alleges, "Apple's secretive lockout policies and refusal to explain or restore access constitute unfair business practices."

Initially, defendant Apple demurs by arguing that there are allegations to support this conclusory fifth cause of action's allegation that defendant Apple refused to restore Plaintiff's access. Defendant Apple suggests the loss of access is unintentional and invites the court to infer from the allegations that defendant Apple simply has been unable to restore access despite trying as opposed to accepting Plaintiff's assertion that defendant Apple has "refused" to restore Plaintiff's access. Defendant Apple apparently overlooks the allegation in the "Factual Background and Timeline" section of the FAC where Plaintiff alleges, "2024 – 2025: Plaintiff repeatedly contacted Apple Support, provided identify verification, and required restoration of access and data export. Apple refused or failed to provide relief." This statement is equivocal as to whether the inability to restore Plaintiff's access is intentional or otherwise, but a plaintiff is to plead alternatively and it is an allegation nevertheless which the court accepts as true for purposes of a demurrer.

Defendant Apple argues secondarily that Plaintiff's other causes of action which seek monetary damages and arise out of the same conduct that this fifth cause of action for unfair competition is premised upon means that this unfair competition claim is precluded. Defendant Apple cites *Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1248 (*Aton*) for the proposition that a UCL claim fails where it seeks overlapping legal and equitable remedies. In the court's review, the *Aton* court did not reach such a conclusion. The trial court in *Aton* "found that Aton could not maintain its UCL claims, which were equitable in nature, because it had an adequate remedy at law—its other causes of action for which it sought money damages." (*Ibid.*). However, the "trial court [also] ruled that Aton's UCL claim fails for reasons independent of concerns about Aton's ability to seek overlapping legal and equitable remedies." The *Aton* court determined (arguably dicta) that it would be futile to allow any further amendment since amendment would not resolve all the other independent reasons that the UCL claim failed.

Finally, defendant Apple essentially recycles one of its earlier arguments on the third cause of action for violation of the SCA (i.e., that defendant Apple is exempt as a service provider) so a violation of the SCA cannot serve as the basis for Plaintiff's UCL claim. Even so, this last argument by defendant Apple is a demurrer to only a portion of a cause of action which is not proper. (See *Financial Corp. of America v. Wilburn* (1987) 189 Cal.App.3d 764, 778—"[A] defendant cannot demur generally to part of a cause of action;" see also *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682—"A demurrer does not lie to a portion of a cause of action;" *Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 Cal.App.4th 265, 274—"A demurrer challenges a cause of action and cannot be used to attack a portion of a cause of action.").

Accordingly, defendant Apple's demurrer to the fifth cause of action of Plaintiff's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for unfair competition is OVERRULED.

IV.<u>CONCLUSION</u>

Based on the foregoing, the Court ORDERS the following: Defendant's demurrer to the first, second, and third causes of action are SUSTAINED with ten (10) days' leave to amend for this hearing date. Defendant's demurrer to the fourth and fifth causes of action is OVERRULED. The Court will prepare the formal Order.

Calendar Line # 7

Case Name AB Landscaping, Inc. vs Andrew J. Fry as co-trustee of the Andrew Fry and Jin Z. Fry Family Trust et al

Case No. 25CV473100

Motion to Strike

I. <u>BACKGROUND</u>

This construction dispute arises from a Complaint alleging five causes of actions for breach of contract, foreclosure of mechanics lien, common count, quantum meruit, and payment of penalties that was filed on August 19, 2025 by Plaintiff. Defendants/Cross-Complainants Andrew J. Fry and Jin Z. Fry filed a cross-complaint alleging fourteen causes of actions on October 8, 2025.

On December 10, 2025, Cross-Defendants AB Landscaping, Inc. and Victor Arellano (collectively Cross-Defendants) filed this special motion to strike the Cross-Complaint. The motion is accompanied by proof of electronic service on Cross-Complainants' counsel on December 2, 2025. The motion was filed with a notice of errata on the special motion to strike on December 18, 2025 that was accompanied by a proof of service by electronic service on Cross-Complainants' counsel on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 31, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

II. LEGAL STANDARD

A moving party must move to strike under this section within 60 days of service of the complaint. (Code of Civ. Proc.. §425.16(f)). Code of Civil Procedure section 425.16, permits the Court to strike causes of action arising from an act in furtherance of the defendant's right of free speech or petition, unless the plaintiff establishes that there is a probability that the plaintiff will prevail on the claim. "The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected *conduct* from the undue burden of frivolous litigation." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393). "The anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity." (*Id.* at 384).

"Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (*Baral, supra,* 1 Cal.5th at 384). The California Supreme Court has "described this second step as a 'summary-judgment-like procedure.' The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. '[C]laims with the requisite minimal merit may proceed.'" (*Id.,* at 384-385).

Protected acts are defined under Code of Civil Procedure section 425.16(e) as the following: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest; or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

III. ANALYSIS

Here, Cross-Defendants motion to strike concerns Cross-Complaints' four causes of actions: (1) fifth cause of action, slander of title (invalid mechanics lien); (2) sixth cause of action, abuse of process/malicious prosecution; (3) eighth cause of action, declaratory relief (invalidity of lien; and (4) thirteen cause of action, quiet title, because appellate courts routinely hold the filing of a mechanics' lien implicate a party's right to petition. (Motion, at p. 2).

Cross-Defendants state that the cross-complainants received an April 17, 2025 revised invoice, and terminated the contract on May 23, 2025, with no work occurring in between. (Motion, at p. 8; Exhibit A ¶ 5 & Exhibit 3).

Seventy days after the cross-complainants terminated the contract, AB recorded a mechanics lien seeking to recover $7,378.03 for the materials and services AB provided for the property on August 1, 2025. (*Id.,* at p 8; Exhibit A ¶ 6 & Exhibit 4). Cross-Defendants assert that the seventy days between the cross-complainants' contract termination and the mechanics lien recordation complies with the ninety-day recordation requirement imposed by Civil Code section 8414. (*Id.*). AB then filed its lawsuit on August 19, 2025, which complies with Civil Code section 8415(a)(8), which AB argues that it lawfully recorded and filed its suit for mechanics lien, and assert that these acts are protected by the right to petition under the anti-SLAPP statutes.

Cross-Defendants meet their prima facie burden of showing that the claims arise from a protected activity. (*Healy v. Tuscany Hills Landscape & Recreation Corp*., (2006) 137 Cal.App.4th 1, 5; *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 278; Code Civ. Proc., § 425.16, subd. (e)). Moving parties can satisfy this burden by showing that the statements made before legislative, executive or judicial proceedings, or made in connection with matters being considered in such proceedings, or the statements made in a public forum, or other conduct in furtherance of the exercise of the constitutional rights of petition or free speech, in connection with issues of public interest. (Code Civ. Proc., § 425.16, subd. (e); *Equilon Ent., LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 66).

Cross-Complainants have failed to oppose the motion. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 10, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Thus, Cross-Complainants have failed to meet their responsive burden of production to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(1); *Balzaga v. Fox News Network, LLC* (2009) 173 Cal.App.4th 1325, 1336).

IV. CONCLUSION

Based on the foregoing, and the unopposed motion, the Court GRANTS Cross-Defendants' special (anti-SLAPP) motion to strike portions of the Cross-Complaint as follows: (1) fifth cause of action, slander of title (invalid mechanics lien); (2) sixth cause of action, abuse of process/malicious prosecution; (3) eighth cause of action, declaratory relief (invalidity of lien; and (4) thirteen cause of action, quiet title, because appellate courts routinely hold the filing of a mechanics' lien implicate a party's right to petition.

The Court will prepare the formal Order.

Calendar Line # 8
Case Name P. Hong vs Justine Papa et al
Case No. 25CV476168

Demurrer

Before the court is defendants' demurrer to plaintiff's complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Plaintiff Prudence Hong ("Hong") was hired by defendant Stanford Health Care ("SHC") on April 17, 2023 as a Licensed Clinical Laboratory Scientist ("CLS"). (Complaint, ¶15). Plaintiff Hong has a disability within the meaning of FEHA, specifically Post-Traumatic Stress Disorder (PTSD) and Major Depressive Disorder (MDD), which substantially limits major life activities. (Complaint, ¶16). Plaintiff Hong had achieved remission of her PTSD and MDD through treatment and was performing her work duties satisfactorily. (Complaint, ¶17).

On or around May 2024, plaintiff Hong was partnered with defendant Joseph Diwas Tatsey ("Tatsey"), a Senior CLS, at the Urinalysis Bench for the first time. (Complaint, ¶¶6 and 18). Defendant Tatsey was expected to provide support and guidance to plaintiff Hong who was newly trained on the bench. (Complaint, ¶18). Hong alleges that instead of providing professional support, defendant Tatsey exhibited unprofessional and threatening behavior toward plaintiff Hong. (Complaint, ¶¶19 – 22).

Plaintiff Hong reported defendant Tatsey's violent and threatening behavior to her supervisor, defendant Justine Papa ("Papa"). (Complaint, ¶23). Defendant Papa did not offer sympathy, did not ask plaintiff Hong to fill out an incident report despite plaintiff Hong's characterization of the incident as "workplace violence," and victim-blamed plaintiff Hong stating, "you must have both [Hong and Tatsey] been sensitive." (*Id.*).

Plaintiff Hong requested not to be partnered with defendant Tatsey but this was impossible given the shared laboratory space. (Complaint, ¶24).

On May 24, 2024, defendant Papa scheduled a meeting with plaintiff Hong and defendant Tatsey claiming defendant Tatsey was ready to apologize but at the meeting, defendant Tatsey was angry and threatening, slamming his hands on the table. (Complaint, ¶¶25 – 26). Plaintiff Hong distanced herself as far away from defendant Tatsey as possible. (Complaint, ¶26). Defendant Papa did nothing to correct defendant Tatsey's behavior during the meeting. (Complaint, ¶27). When plaintiff Hong realized defendant Papa could not or would not provide support and safety, plaintiff Hong left the meeting. (*Id.*). Plaintiff Hong sent defendant Papa an email expressing her fear of defendant Tatsey and reiterating no apology was made. (Complaint, ¶28). Defendant Papa never responded or addressed the situation further. (*Id.*).

Thereafter, plaintiff Hong was ostracized by all team members close to defendant Tatsey causing plaintiff Hong's mental health to plummet. (Complaint, ¶¶29 – 30). Plaintiff Hong's focus, concentration, and memory suffered leading to a work mishap on August 28, 2024 where plaintiff Hong confused the team's weekday versus weekend responsibilities. (Complaint, ¶31). Plaintiff Hong immediately emailed defendant Papa to take responsibility but defendant Papa did not acknowledge the email, instead pursuing an investigation and accusing plaintiff Hong of neglect and disrespect toward her team. (Complaint, ¶¶32 – 33).

On September 17, 2024, defendant Papa issued plaintiff Hong a written warning for alleged failure to meet standards, negligence of workflow, and playing games during work based on exaggerated or false claims by team members. (Complaint, ¶34). The written warning was issued in violation of defendant SHC's progressive discipline policy and eliminated plaintiff Hong's chance of an internal transfer for the next year. (Complaint, ¶¶35 – 36). The written warning also severely stunted any career growth or prospects for plaintiff Hong as a CLS. (Complaint, ¶36).

On September 23, 2024, plaintiff Hong filed a complaint with Human Resources ("HR") detailing the workplace violence, toxic work environment, and defendant Papa's misconduct as a supervisor and retaliatory discipline. (Complaint, ¶37). On December 13, 2024, plaintiff Hong met with an Employee & Labor Relations ("ELR") representative and disclosed her disabilities, the return of her PTSD symptoms, and worsening depression, anxiety, and insomnia. (Complaint, ¶39).

Following ELR intervention, plaintiff Hong's discipline was reduced from a written warning to a verbal warning and defendant Papa allowed plaintiff Hong to be trained in a new bench, though the hostile atmosphere continued and worsened. (Complaint, ¶40). Due to the hostile work environment, plaintiff Hong's mental health deteriorated significantly. (Complaint, ¶41). Plaintiff's PTSD and MDD symptoms returned and worsened despite treatment. (*Id.*).

On February 13, 2025, plaintiff Hong took a medical leave of absence and was hospitalized for eight weeks with severe depression and anxiety. (Complaint, ¶42).

On May 8, 2025, plaintiff Hong's psychiatrist completed a disability accommodation form recommending plaintiff Hong return to work with temporary restriction of working day shift only from May 31, 2025 to December 31, 2025, to allow for sleep normalization and attendance at evening therapy. (Complaint, ¶¶43 – 44).

On May 27, 2025, a management representative called plaintiff Hong to informally deny her accommodation request without stating an official reason. (Complaint, ¶45). Despite multiple CLS positions being available on the day shift, defendant SHC refused to accommodate plaintiff Hong's temporary shift change request. (Complaint, ¶46).

On July 16, 2025, the management representative provided the formal accommodation denial letter without stating the undue burden defendant SHC would face in providing the accommodation. (Complaint, ¶47).

On August 1, 2025, defendant SHC issued plaintiff Hong a "Release from Position" letter stating that due to operational needs, defendant SHC was unable to hold plaintiff Hong's position as a CLS and that she would be released from her position. (Complaint, ¶48). The release letter indicated plaintiff Hong's health benefits were terminated on July 31, 2025 and plaintiff Hong would need to independently find a new position within Stanford after being released. (Complaint, ¶49).

During her leave, plaintiff Hong applied for internal transfers to other departments within defendant SHC. (Complaint, ¶50). Plaintiff Hong had interviews with supervisors who expressed interest in hiring her but after those supervisors spoke with defendant Papa, plaintiff Hong received no further communication which suggests defendant Papa provided negative references that sabotaged plaintiff Hong's transfer opportunities. (*Id.*).

Plaintiff Hong alleges that Defendant SHC's conduct was motivated by discriminatory animus based on plaintiff Hong's race (Asian-American) and disability (PTSD and MDD) and in retaliation for her protected activities including her complaints of workplace violence, discrimination, and requests for accommodation. (Complaint, ¶54).

On September 24, 2025, plaintiff Hong commenced this action by filing a complaint against defendants SHC, Papa, and Tatsey asserting causes of action for:

(1) Racial Discrimination in Violation of FEHA – Gov. Code §12940(a)
(2) Disability Discrimination in Violation of FEHA – Gov. Code §12940(a)
(3) Failure to Provide Reasonable Accommodation in Violation of FEHA – Gov. Code §12940(m)
(4) Failure to Engage in Timely, Good Faith Interactive Process in Violation of FEHA – Gov. Code §12940(n)
(5) Retaliation for Protected Activity in Violation of FEHA – Gov. Code §12940(h)
(6) Harassment/ Hostile Work Environment in Violation of FEHA – Gov. Code §12940(j)
(7) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of FEHA – Gov. Code §12940(k)
(8) Wrongful Termination in Violation of Public Policy – *Tameny*
(9) Safety Retaliation in Violation of Labor Code §6310
(10) Whistleblower Retaliation in Violation of Labor Code §1102.5
(11) Retaliation – Working Conditions Disclosure in Violation of Labor Code §232.5
(12) Retaliation – General Labor Code Activity in Violation of Labor Code §98.6

On January 6, 2026, defendants SHC, Papa, and Tatsey filed the motion now before the court, a demurrer to plaintiff Hong's complaint.

II. <u>LEGAL STANDARD</u>

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A. INDIVIDUAL DEFENDANTS PAPA AND TATSEY'S DEMURRER TO ALL CAUSES OF ACTION (EXCEPT FOR THE SIXTH) ON THE GROUND THAT THEY CANNOT BE INDIVIDUAL LIABLE IS SUSTAINED

The individual defendants, Papa and Tatsey, demur to all the causes of action asserted against them in plaintiff Hong's complaint, save the sixth cause of action for harassment, on the ground that only an employer can be liable for discrimination and retaliation and they are not alleged to be plaintiff Hong's employer. "[W]e conclude that individuals who do not themselves qualify as employers may not be sued under the FEHA for alleged discriminatory acts." (*Reno v. Baird* (1998) 18 Cal.4th 640, 663 (*Reno*)). The California Supreme Court in *Jones v. The Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158 held Government Code section 12940, subdivision (h) will not support a claim of unlawful retaliation against a non-employer individual (such as a supervisor), if the underlying action is for discrimination.

"[A] supervisory employee is not personally liable under the FEHA, as an aider and abettor of the harasser, for failing to take action to prevent the sexual harassment of a subordinate employee." (*Fiol v. Doellstedt* (1996) 50 Cal.App.4th 1318, 1326).

"As a matter of law, only an employer can be liable for the tort of wrongful discharge in violation of public policy." (*Khajavi v. Feather River Anesthesia Medical Group* (2000) 84 Cal.App.4th 32, 53).

In opposition, plaintiff Hong offers no argument to support individual liability against defendants Papa and Tatsey on any cause of action other than the sixth cause of action.

Accordingly, defendants Papa and Tatsey's demurrer to the first, second, third, fourth, fifth, seventh, eighth, ninth, tenth, eleventh, and twelfth causes of action of plaintiff Hong's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] is SUSTAINED WITHOUT LEAVE TO AMEND.

B. HARASSMENT AND HOSTILE WORK ENVIRONMENT

> Under the FEHA, it is unlawful "[f]or an employer … or any other person, because of . . . race . . . [or] mental disability. . . to harass an employee . . . ". (§ 12940, subd. (j)(1)). To establish a prima facie case of a hostile work environment, [a plaintiff] must show that (1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) ***the harassment was based on her protected status***; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment.

(*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581; see also CACI, Nos. 2521A and 2522A).

In demurring, defendants contend plaintiff's sixth cause of action for harassment/ hostile work environment fails because she has not alleged that any harassment she suffered was based on her race (Asian) or disability (PTSD/ MDD). The initial incident between plaintiff Hong and defendant Tatsey in May 2024 was, by plaintiff Hong's own allegation, triggered "[w]hen plaintiff informed [Tatsey] that one of the analyzers ran out of reagents" causing Tatsey to "explode[] with anger, raise[] his voice, and insult Plaintiff for 'intentionally leaving work for him to do.'" (Complaint, ¶19). There are no particularized allegations which link the harassment to plaintiff Hong's racial or disability status. The only allegation to do so is found at paragraphs 90 and 92 where plaintiff Hong alleges, "Defendants subjected Plaintiff to harassment based on her race and disability" and "The harassment was based on Plaintiff's protected characteristics of race and disability. . .".

In opposition, plaintiff Hong notes she has made the general allegation that the harassment was based on her race and disability and contends any inference otherwise should be left to a trier of fact.[13] However, the court finds this general allegation insufficient. This sixth cause of action is explicitly premised upon a statute, Government Code section 12940, subdivision (j). "[Where] recovery is based on a statutory cause of action, the plaintiff must set forth facts in his [or her] complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate. [Citations.]" (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5).

The court recognizes that in claims involving discriminatory animus, direct evidence of such discriminatory intent is rare and a plaintiff will typically only have circumstantial evidence. Even so, plaintiff Hong includes no detailed or specific factual allegations which would even give rise to an inference that the harassment plaintiff Hong purportedly suffered was because of her race and/or disability. Plaintiff Hong's reliance on *Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 614 (*Thomas*) is not persuasive as even there, the court wrote, "At the demurrer stage, [plaintiff] was [ ] required . . . to ***allege <u>facts</u> showing or supporting an inference of [discriminatory intent or motivation based on race or disability]***." (emphasis added). The court in *Thomas* noted that there were factual allegations made to support a reasonable inference that the harassment, there, was based on gender. (See *Thomas*, *supra*, 97 Cal.App.5th at pp. 614 – 615—allegations "describe McGuire referring to players' sexual activity (berating a young woman for having a hickey on her neck) or making comments that implicate gender-based stereotypes and expectations (comments about young women's bodies; "calling out" a young woman's physique and calling her "weak.") Here, plaintiff Hong's conclusory allegations that defendants' harassment was based on Plaintiff's race and disability do not suffice.

Accordingly, defendants' demurrer to the sixth cause of action of plaintiff Hong's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for harassment/ hostile work environment is SUSTAINED with 10 days' leave to amend.

C. WRONGFUL TERMINATION

Plaintiff Hong's eighth cause of action is entitled, "Wrongful Termination in Violation of Public Policy – *Tameny*." Apart from the individual defendants' demurrer to this eighth cause of action, defendant SHC demurs to this eighth cause of action as well. "The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (*Yau v. Allen* (2014) 229 Cal.App.4th 144, 154).

Defendant SHC acknowledges paragraph 51 of plaintiff Hong's complaint which alleges "constructive termination." Nevertheless, defendant SHC contends plaintiff Hong has not alleged that she is no longer employed by defendant SHC or that she resigned her employment suggesting plaintiff Hong remains a current SHC employee.

Yet, at paragraph 1 of the complaint, plaintiff Hong alleges, in relevant part that she was employed by defendant SHC "from April 17, 2023 through August 1, 2025." Then, plaintiff Hong alleges, "On August 1, 2025, SHC issued Plaintiff a 'Release from Position' letter, stating that due to 'operational needs,' SHC was 'unable to hold

[13] Plaintiff Hong contends racially discriminatory intent is evidenced by her allegation that "essentially every Filipino [another Asian group or group of national origin] member" participated in ostracizing her. Without more, the court does not follow plaintiff Hong's logic here.

[her] position as a Clinical Lab Scientist' and that she would be 'released from [her] position.'" (Complaint, ¶48). "The release letter indicated that Plaintiff's health benefits were terminated on July 31, 2025, and that she would need to independently find a new position within Stanford after being released." (Complaint, ¶49). The court reads these allegations to state that defendant SHC terminated plaintiff's employment.

Accordingly, defendant SHC's demurrer to the eighth cause of action of plaintiff Hong's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for wrongful termination in violation of public policy is OVERRULED.

D. SAFETY RETALIATION IN VIOLATION OF LABOR CODE SECTION 6310

Plaintiff Hong's ninth cause of action is premised explicitly on Labor Code section 6310. Labor Code "section 6310, subdivision (a)(1) prohibits an employer from discharging [or discriminating against] an employee for making a health and safety complaint. Section 6310, subdivision (b) provides remedies for an employee who is discharged for making a bona fide oral or written complaint of unsafe working conditions." (*Cabesuela v. Browning-Ferris Indus.* (1998) 68 Cal.App.4th 101, 108; footnotes omitted).

Plaintiff Hong alleges she complained "specifically [about] workplace violence and unsafe working conditions created by Tatsey's threatening and violent behavior." (Complaint, ¶109).

Defendant SHC demurs to this ninth cause of action by arguing first, without citation to any legal authority, that "a report of workplace violence does not fall under an occupational safety and health hazard." In the absence of any citation to legal authority, the court is left to surmise what does nor does not fall under an occupational safety and health hazard and, therefore, the court does not reach the conclusion, as a matter of law, that workplace violence is not an occupational safety and health hazard.

Next, defendant SHC argues next that defendant Tatsey's allegedly threatening and violent behavior cannot be categorized as workplace violence. To support this assertion, defendant SHC cites 8 CCR §3342 which defines "workplace violence" as "any act of violence or threat of violence that occurs at the work site" including, "The threat or use of physical force against an employee that results in, or has a high likelihood of resulting in, injury, psychological trauma, or stress, regardless of whether the employee sustains an injury." Defendant SHC argues the complaint lacks any allegation that defendant Tatsey threatened or used physical force against plaintiff Hong.

Initially, the threat or use of physical force is but one example of an act or threat of violence under the non-exclusive and, as defendant SHC admits, broad definition of "workplace violence" provided. Moreover, in the court's view, plaintiff does allege a threat or use of physical force against her. At paragraph 20 of the complaint, plaintiff Hong alleges defendant Tatsey "returned with a heavy reagent, and slammed it just two feet to the left of Plaintiff" and "continued to kick around the reagent threateningly." At paragraph 26 of the complaint, plaintiff Hong alleges that during her meeting with defendants Papa and Tatsey, Tatsey "slam[ed his] hands on the table." The court finds that plaintiff has alleged the threat and/or use of physical force against her even if there is no direct contact.

Accordingly, defendant SHC's demurrer to the ninth cause of action of plaintiff Hong's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for retaliation in violation of Labor Code section 6310 is OVERRULED.

E. RETALIATION – WORKING CONDITIONS DISCLOSURE IN VIOLATION OF LABOR CODE SECTION 232.5

Labor Code section 232.5 states, in relevant part, "No employer may . . . Discharge, formally discipline, or otherwise discriminate against an employee who discloses information about the employer's working conditions."

In her eleventh cause of action, plaintiff Hong alleges defendants retaliated against her, by subjecting her to adverse employment actions including disciplinary action and termination, for disclosing working conditions, including workplace violence, hostile work environment, and unsafe conditions, with her supervisor, HR, and other appropriate parties. (Complaint, ¶¶122 – 123).

Defendant SHC demurs to this eleventh cause of action by arguing first that plaintiff Hong has not alleged SHC terminated or disciplined her for disclosing information about her working conditions. Yet, paragraphs 122 – 123, immediately cited above, alleges retaliation for disclosing working conditions to her supervisor, HR, and other appropriate parties.

Accordingly, defendant SHC's demurrer to the eleventh cause of action of plaintiff Hong's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for retaliation in violation of Labor Code section 232.5 is OVERRULED.

IV.<u>CONCLUSION</u>

Based on the foregoing, the Court ORDERS as follows: Defendants Papa and Tatsey's demurrer to the first, second, third, fourth, fifth, seventh, eighth, ninth, tenth, eleventh, and twelfth causes of action of plaintiff Hong's complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendant's demurrer to the sixth cause of action is SUSTAIEND with ten (10) days' leave to amend from this hearing date.

Defendant SHC's demurrer to the eighth; ninth; eleventh cause of action of plaintiff Hong's complaint is OVERRULED.

The Court will prepare the formal Order.